

Raju S/O Yamunaji Navratne And 2 Others vs State Of Mha. Thr. Ps Yashodhara Nagar ... on 13 October, 2022

Author: Vinay Joshi

Bench: Vinay Joshi

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IN THE HIGH COURT OF JUDICATURE AT BOMBAY
NAGPUR BENCH : NAGPUR

CRIMINAL WRIT PETITION NO. 656 OF 2022

1) Raju S/o. Yamunaji Navratne,
aged about 42 years, Occ.: Labour,

2) Sonabai D/o. Yamunaji Navratne,
aged about 46 years, Occ.: Labour,

Anusayabai W/o. Yamunaji Navratne,
3)
about 72 Years, Occ.: Labour,

All 1 to 3 R/o. Shastri Nagar, Ward
No.17, Post Pobhurna, District
Chandrapur.

... PETITIONERS

Versus

1) State of Maharashtra through Police
Station Yashodhara Nagar, Nagpur.

2) Swati W/o. Raju Navratne,
aged about 33 Years, Occ.: Household,
R/o. C/o. 48, Jaybhole Nagar,
Yashodhara Nagar, Nagpur.

...RESPONDENTS

Shri. Madhur Deo, Advocate for petitioner.
Shri. I. J. Damle, APP for respondent No.1/State.
Shri. Suneet Ambade, Advocate for respondent No.2.

CORAM : VINAY JOSHI AND
MRS. VRUSHALI V. JOSHI, JJ.

DATED : 13/10/2022

ORAL JUDGMENT : [PER: VINAY JOSHI, J.]

1. Heard.

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2. Rule. Rule made returnable forthwith by consent of the learned counsel appearing for the parties.

3. The petitioners have invoked the inherent jurisdiction of this Court in terms of Section 482 of the Code of Criminal Procedure seeking to quash Crime No.208/2018 (referred as FIR No.406/2018 in FIR) along with Regular Criminal Case No.4448/2018 pending on the file of Judicial Magistrate First Class, Nagpur for the offence punishable under Section 498-A read with Section 34 of the Indian Penal Code (hereinafter referred to as 'the IPC').

4. Petitioner No.1 is the husband whilst petitioner Nos.2 and 3 are sister-in-law and mother-in-law of respondent No.2-wife respectively. The couple got married in the year 2007 and having two daughters from wedlock. The respondent No.2-wife has lodged report on 03.09.2018 against the petitioners, alleging cruelty within the meaning of Section 498-A of the IPC. The police investigated the matter and filed charge-sheet in the Court of Judicial Magistrate First Class. It is informed that yet charges have not been framed.

5. It is petitioners' contention that the parties have amicably settled the dispute out of Court. In pursuance of settlement, they have applied for divorce by mutual consent in terms 3 923.wp.656.2022.judgment.odt of Section 13-B of the Hindu Marriage Act. Accordingly, the marriage was dissolved vide decree dated 16.03.2022 passed in Hindu Marriage Petition No.53/2022. It is submitted that in order to maintain cordial relations in the family both have decided to sever their ties permanently and accordingly divorce was obtained. In order to maintain harmony between the families they have decided to close all the pending proceedings.

6. Respondent No.2-wife has voluntarily appeared and filed her affidavit dated 03.09.2022 emphasizing that due to settlement, she do not wish to prosecute the criminal case pending in the Court of Magistrate. She has stated on affidavit that she has no objection to quash the concerned FIR dated 03.09.2018. Respondent No.2-wife is present in person, who is accompanied by her brother, namely, Ashwin Sanjayrao Joshi. Respondent No.2 has been identified before Court by her counsel Shri. Suneet Ambade. We have personally verified with the lady about the contents of affidavit to which she accepted. We find that she has voluntarily filed the affidavit and consented for quashing of the criminal proceedings.

7. It was a matrimonial dispute meaning thereby of personal nature. The parties have already settled the same out of Court, and therefore there is no purpose in asking them to face full-

4 923.wp.656.2022.judgment.odt fledged trial which would be futile exercise.

8. Having regard to all above facts, and particularly the criminal case is arising out of domestic dispute, we find it appropriate to quash the proceedings.

9. In view of that petition is allowed and FIR No.208/2018 registered with Yashodhara Nagar Police Station, Nagpur (also referred as FIR No.406/2018) along with charge-sheet and criminal case bearing Regular Criminal Case No.4448/2018 pending on the file of Judicial Magistrate First Class, Nagpur is hereby quashed and set aside.

10. Petition stands disposed of in above terms.

(MRS. VRUSHALI V. JOSHI, J.) (VINAY JOSHI, J.) Sarkate